

MGTF 490

Mergers, Acquisitions, and Corporate Restructurings

Flex-Evening MBA Program

DRAFT
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CLASS SESSIONS Wednesdays 6:30 – 9:20 pm
CLASSROOM OTRSN 1E106

DESCRIPTION

This course explores major corporate reorganizations: acquisitions, divestitures, and restructurings. Firms make these strategic decisions in face of major competitive challenges and opportunities to increase shareholder value by exploiting growth and repositioning opportunities. Studying corporate reorganizations gives powerful insights to how firms adapt to technological change, economic and regulatory shocks, and globalization as well as the roles economic institutions play in promoting competition and mandating disclosures.

The course provides a framework for analyzing transactions based on in-depth analysis of case studies.

Prerequisites: Knowledge of the concepts of finance developed in MGT 408, basic familiarity with Microsoft Excel.

OBJECTIVES

By the end of the course students are expected to:

- *master the language and process of M&A and restructuring;*
- *identify problems and opportunities in corporate reorganizations;*

- *analyze transactions rigorously and understand the drivers of success or failure;*
- *form educated opinions about proposed deals;*
- *become proficient in the accounting and taxation of acquisitions and restructurings; and*
- *possess an understanding of the regulatory framework of corporate acquisitions.*

MATERIALS

There is no mandatory textbook for this course. Background concepts and glossaries will be presented in lecture notes and handouts will be posted to Canvas.

Required

1. A course pack with case studies

Recommended (optional extra materials)

- Donald DePamphilis: Mergers, Acquisitions and Other Restructuring Activities (Academic Press, 2015, Eighth Edition)
- Robert F. Bruner: Applied Mergers and Acquisitions University Edition, (John Wiley & Sons, 2004)
- J. Fred Weston, Mark L. Mitchell, and J. Harold Mulherin: Takeovers, Restructuring, and Corporate Governance (Pearson, 2004, Fourth Edition)

COURSE SCHEDULE

We will be covering a substantial amount of material in a relatively short time. The course outline provides a general framework for this work. The schedule may be adjusted as necessary.

#	Date	Topic(s)	Readings	Deliverables
1	Sep 30	History and Economic Role of Corporate Acquisitions	Lecture Notes, Handouts	
2	Oct 7	Creating Shareholder Value: Synergy and Growth	RightNow Technologies	Quiz 1 Form teams and select case study for team presentation. Submit names of team members.

3	Oct 14	Valuation, Accounting and Taxation Issues	Keane's Acquisition of Metro Information Svc (A) and (B)	Quiz 2
4	Oct 21	Creating Shareholder Value: Consolidation and Productive Efficiencies	CeMex and the Rinker Acquisition (A) and (B)	Quiz 3
5	Oct 28	Managerial Incentives and Corporate Governance	Accounting Fraud at WorldCom	Quiz 4
6	Nov 4	Cross-border Acquisitions	This Bud's for Who? The Battle for Anheuser Busch	Quiz 5
7	Nov 11	No Class – Veteran's Day		
8	Nov 18	Leveraged Buyouts	The Panera Bread LBO	Quiz 6
9	Nov 25	Management Buyouts	The Management Buyout of Dell, Inc.	Quiz 7
10	Dec 2	Team Presentations	Team presentations	Team presentation submissions due

ASSIGNMENTS & DELIVERABLES

Reading Assignments

This course is based on in-depth analysis of business case studies. Students will be expected to read carefully the assigned case study prior to class.

Team Projects

Students will form teams of 3 to 5 members to analyze a case study in M&A. Students can either choose a business study case from a list, or develop a “live” case study by analyzing a recent transaction. Teams are encouraged to supplement information in the case studies with their own research of the companies and relevant issues. Teams will prepare a 20-25 minute Powerpoint presentation for the last session.

Teamwork provides valuable experience on working effectively and efficiently in groups, learning from others and sharpening communication skills. However, human nature may tempt some students to relax and let others carry their load. To incentivize students to make maximum contributions to the team, students are asked to grade each team member's contributions on a 0 to 5 point scale and submit it by email before the last session. If a team member does not submit an evaluation (s)he will be deemed to have given maximum scores to each member of the team.

The team research project is worth 18 gradepoints. This will be adjusted according to the submitted peer evaluations.

Quizzes

Starting in Week 2 there will be seven brief (approximately 20-minute) quizzes at the beginning of each session from 2 pm to 2:20 pm. Quizzes consist of brief questions on the previous lecture (concepts, terminology, examples) and the current case assignment.

Quizzes are closed book – closed notes and they must be completed individually. Collaboration and use of resources and applications besides those specified by the instructor are not allowed on the quizzes.

The Honor Code of Rady School applies to all quizzes.

Quizzes are worth 12 gradepoints each. The lowest quiz grade will be dropped.

If a student is expecting technical difficulties in accessing Canvas or email during the time of the quiz, (s)he should write an email to the instructor **before the time of quiz** and request a makeup quiz. Makeup requests are not accepted once the quiz is made accessible to students.

Class Participation

Class participation is an important way to exchange ideas and opinions, and raise the quality of the learning experience for all students. Participation can take the form of asking relevant questions, making comments, or citing an experience or viewpoint.

Ten gradepoints are awarded for class participation. This grade will reflect my assessment of both the quantity and quality of the individual's contribution to class learning.

Excused absences are permitted up to 20% of the class sessions. Students granted an excused absence are expected to catch up with the material they miss by watching class recordings and working through the material independently. They may request a makeup quiz.

GRADING

Exams and Deliverables	Points [or percentage]
Quizzes (12 points each, 6 best scores)	72
Team Research Presentation	18
Class participation	10
Total	100

COURSE POLICIES

Finance is a fascinating field for researchers and practitioners alike. The case discussions give ample opportunity to learn from each other's varied experiences and perspectives. We strive to practice meaningful and constructive dialogue in an atmosphere of mutual respect, willingness to listen, and tolerance of opposing points of view.

We aim to create an inclusive learning environment that supports diversity of thoughts, perspectives and experiences, and honors identities (including race, gender, class, sexuality, religion, ability, etc.). Students are encouraged to make suggestions to improve focus on diversity and inclusion and bring sensitive issues to my attention. I will respect requests to keep anonymity.

ACADEMIC INTEGRITY

Integrity of scholarship is essential for an academic community. As members of the Rady School, we pledge ourselves to uphold the highest ethical standards. The University expects that both faculty and students will honor this principle and in so doing protect the validity of University intellectual work. For students, this means that all academic work will be done by the individual to whom it is assigned, without unauthorized aid of any kind.

The Rady Honor Code applies to all assignments in this course.

No student shall engage in any activity that involves attempting to receive a grade by means other than honest effort, for example:

- **no student shall knowingly procure, provide, or accept any unauthorized material that contains questions or answers to any examination or assignment to be given at a subsequent time,**
- **no student shall complete, in part or in total, any examination or assignment for another person,**
- **no student shall knowingly allow any examination or assignment to be completed, in part or in total, for himself or herself by another person,**
- **no student shall plagiarize or copy the work of another person and submit it as his or her own work,**
- **no student shall employ aids excluded by the instructor in undertaking coursework or in completing any exam or assignment,**
- **no student shall alter graded class assignments or examinations and then resubmit them for re-grading, and**

- **no student shall submit substantially the same material in more than one course without prior authorization.**

The complete UCSD Policy on Integrity of Scholarship can be viewed at:
<http://senate.ucsd.edu/Operating-Procedures/Senate-Manual/Appendices/2>

CLASS POLICIES ON THE USE OF ARTIFICIAL INTELLIGENCE (AI) TOOLS LIKE CHATGPT, BARD, BING CHAT, CLAUDE, ETC.

AI tools such as ChatGPT are permitted in this class for the purposes of enhancing learning. However, it is the responsibility of each student to ensure that their use of AI tools does not constitute academic misconduct, such as plagiarism or cheating.

In other words students are responsible for

- verifying the accuracy of content generated by AI tools if they use this content in graded assignments;
- referencing such content to its proper AI source;
- employing AI tools in a responsible and ethical manner; and
- abiding by the guidelines set forth by the instructor.

Any violation of these guidelines will result in disciplinary action.

STUDENTS WITH DISABILITIES

A student who has a disability or special need and requires an accommodation in order to have equal access to the classroom must register with the Office for Students with Disabilities (OSD). The OSD will determine what accommodations may be made and provide the necessary documentation to present to the instructor and OSD liaison.

Students requesting accommodations for this course due to a disability must provide a current Authorization for Accommodation (AFA) letter (paper or electronic) issued by the Office for Students with Disabilities (<https://osd.ucsd.edu/portal/tutorial.html>). Students are required to discuss accommodation arrangements with instructors and OSD liaisons in the department **72 business hours in advance** of any exams or assignments. **No accommodations can be implemented retroactively.**

Please visit the [OSD website](#) for further information or contact the Office for Students with Disabilities at (858) 534-4382 or osd@ucsd.edu.

NONDISCRIMINATION POLICY STATEMENT

The University of California, in accordance with applicable federal and state laws and university policies, does not discriminate on the basis of race, color, national origin, religion, sex, gender, gender identity, gender expression, pregnancy (including pregnancy, childbirth, and medical conditions related to pregnancy or childbirth), physical or mental disability, medical condition, genetic information, ancestry, marital status, age, sexual orientation, citizenship, or service in the uniformed services (including membership, application for membership, performance of service, application for service, or obligation for service in the uniformed services). The

university also prohibits harassment based on these protected categories, including sexual harassment, as well as sexual assault, domestic violence, dating violence, and stalking. The nondiscrimination policy covers admission, access, and treatment in university programs and activities.

TITLE IX

The Office for the Prevention of Harassment & Discrimination (OPHD) provides assistance to students, faculty, and staff regarding reports of bias, harassment, and discrimination. OPHD is the UC San Diego Title IX office. Title IX of the Education Amendments of 1972 is the federal law that prohibits sex discrimination in educational institutions that are recipients of federal funds. Rady students have the right to an educational environment that is free from harassment and discrimination.

You can make a complaint of harassment or discrimination — or simply make an appointment to find out more information — by contacting OPHD.

- (858) 534-8298
- ophd@ucsd.edu
- [Overview for Students](#) webpage

Students may feel more comfortable discussing their particular concern with a trusted employee. This may be a Rady student affairs staff member, a department Chair, a faculty member or other University official. These individuals have an obligation to report incidents of sexual violence and sexual harassment to OPHD. This does not necessarily mean that a formal complaint will be filed.

If you find yourself in an uncomfortable situation, ask for help. The Rady School of Management is committed to upholding University policies regarding nondiscrimination, sexual violence and sexual harassment.

HEALTH AND WELL-BEING

Throughout your time at UC San Diego, you may experience a range of issues that can negatively impact your learning. These may include physical illness, housing or food insecurity, strained relationships, loss of motivation, depression, anxiety, high levels of stress, alcohol and drug problems, feeling down, interpersonal or sexual violence, or grief.

These concerns or stressful events may lead to diminished academic performance and affect your ability to participate in day-to-day activities. If there are issues related to coursework that are a source of particular stress or challenge, please speak with me, [Professor's Name], so that I am able to support you. UC San Diego provides a number of resources to all enrolled students, including:

- Counseling and Psychological Services (858-534-3755 | caps.ucsd.edu)
- Student Health Services (858-534-3300 | studenthealth.ucsd.edu)
- CARE at the Sexual Assault Resource Center (858-534-5793 | care.ucsd.edu)
- The Hub Basic Needs Center (858-246-2632 | basicneeds.ucsd.edu)